

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: courtroom minute record confirming actual merits argument and submission.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Argument minutes

Argument-Held Order and Minute Sheet

Entered June 10, 2026.

The appeal was called for oral argument in the Richmond session before Composite Jurist Alder, presiding, Composite Jurist Reed, and Composite Jurist March. Fictional counsel appeared for appellant Officer Nolan Rusk and appellee Mara Ellison. No party failed to appear, and no motion to continue remained pending.

Rusk used fifteen minutes in opening and five minutes in rebuttal. Ellison used twenty minutes. The panel questioned both sides about the boundary between an appealable legal immunity issue and an unreviewable request to reassess evidence. Counsel identified JA246–JA253 as the district court's separation of its sufficiency ruling from its plaintiff-favorable legal holding.

At the panel's request, the courtroom deputy played authenticated portions of the synchronized record immediately before, during, and after the obstructed interval. The playback was for record orientation and did not reveal a continuous view of the hands. No generated image or extra-record demonstrative was received. The panel reminded counsel that the Court would not decide from the bench whether the alleged strike or duty-belt reach actually occurred.

Minute entries and submission order

The panel asked Rusk whether dismissal of the media-based contention would leave a reviewable clearly-established-law question. Counsel answered yes and requested reversal on that legal prong. The panel asked Ellison whether affirmance would bind the trial factfinder to her account. Counsel answered no and requested a judgment expressly preserving the competing histories.

Questions also addressed the significance of a single drive-stun cycle, the protective nature of the seizure, *Armstrong's* prospective notice, *Barricks's* appellate framework, and *Zorn's* demand for specificity. Both parties agreed that *Barricks* and *Zorn* postdate the February 3, 2025 encounter and cannot themselves furnish notice to Rusk. They disagreed about whether the older Fourth Circuit cases provided a sufficiently close rule.

The appeal was submitted at the conclusion of rebuttal. No supplemental brief is ordered. Counsel must notify the Clerk if a material jurisdictional development occurs before decision. The audio recording of argument will be maintained under the Court's ordinary access practice; this minute sheet is not a transcript and does not amend any position stated in the filed briefs.

Entered at the panel's direction on June 10, 2026, with electronic notice to counsel.